

HOUSE No. 5190

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 5, 2026.

The committee on State Administration and Regulatory Oversight, to whom was referred the petition (accompanied by bill, House, No. 3420) of Jeffrey Rosario Turco that the commissioner of Capital Asset Management and Maintenance be authorized to release the use restriction provision restricting the use of the parcel to parking purposes only in the city of Revere, reports recommending that the accompanying bill (House, No. 5190) ought to pass.

For the committee,

ANTONIO F. D. CABRAL.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act releasing certain land use restrictions held by the commonwealth in the city of Revere.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the
2 commissioner of the division of capital asset management and maintenance shall, subject to the
3 consideration requirement in section 2, release the use restriction provision restricting the use of
4 the parcel to parking purposes only, the use restriction provision restricting the owner of the land
5 from using the parcel to enhance the permitted floor area ratio of any of the land owner's
6 adjacent property, and the right of reverter created pursuant to chapter 443 of the acts of 2004
7 and reserved through the release deed to Joseph A. Festa, Jr. and John V. Festa as trustees of the
8 Festa Towers Irrevocable Trust, recorded on December 13, 2006 with the Suffolk county registry
9 of deeds in book 40922, page 303, pertaining to Lot "6A" in the city of Revere as shown on a
10 plan recorded on December 13, 2006 with the Suffolk county registry of deeds in plan book
11 2006, page 1135.

12 SECTION 2. The consideration to be paid to the commonwealth for the conveyance
13 authorized in section 1 shall be the full and fair market value of the aforementioned restrictions
14 based upon an independent professional appraisal as determined by the commissioner of the

division of capital asset management and maintenance. The inspector general shall review and approve the appraisal. Said inspector general shall prepare a report of their review of the methodology utilized for said appraisal and shall file the report with the commissioner for submission to the house and senate committees on ways and means and the chairs of the joint committee on state administration and regulatory oversight. Said commissioner shall, 30 days before the execution of any agreement authorized by this act, or any subsequent amendment thereof, submit the agreement or amendment and a report thereon to said inspector general for review and comment. Said inspector general shall issue their review and comment within 21 business days of receipt of any agreement or amendment. Said commissioner shall submit the agreement and any subsequent amendments thereof, the reports and the comments of said inspector general, if any, to the house and senate committees on ways and means and the chairmen of the joint committee on state administration and regulatory oversight at least 15 business days before execution.

SECTION 3. The owner of the land released shall assume all costs associated with engineering, surveys, appraisals, deed preparation and other expenses deemed necessary by the department to execute the conveyances authorized in this act.

SECTION 4. As a condition of the release described in section 1, not less than ten percent (10%) of all housing units developed on the parcels described in section 1 shall be affordable housing, to be priced for rent or sale to households earning up to eighty percent (80%) of the area wide median income as determined by the United States Department of Housing and Urban Development, and assure affordability for twenty (20) years.